

Ajay Kumar vs Anjana Verma on 8 March, 2019

Author: Tarlok Singh Chauhan

Bench: Tarlok Singh Chauhan

IN THE HIGH COURT OF HIMACHAL PRADESH,
SHIMLA.

FAO(HMA) No.204 of 2016.

Date of decision: 8th March, 2019.

Ajay Kumar

.....Appellant.

Versus

Anjana Verma

....Respondent.

Coram

The Hon'ble Mr. Justice Tarlok Singh Chauhan, Judge.

Whether approved for reporting?1 No

For the Appellant

: Mr. Harjeet Singh, Advocate.

For the Respondent :

Mr. Ajay Sharma, Advocate.

Tarlok Singh Chauhan, Judge (Oral)

CMP No.1412 of 2019.

Learned counsel for the applicant/appellant has filed this application for withdrawal of the present appeal with liberty to file a fresh petition under the provisions of law.

2. It is averred by learned counsel for the applicant/appellant that on account of "technical defect", the Whether reporters of Local Papers may be allowed to see the Judgment ?Yes appeal is bound to fail, however, the so-called "technical defect" has not been submitted in the application.

.

3. Learned counsel for the appellant submits that his client intends to file a petition under Section 13 of the Hindu Marriage Act. Obviously, the cause of action and ground(s) for the said petition are entirely different from the one, available under Section 12 of the Hindu Marriage Act, which forms the subject-matter of the present appeal and, therefore, there is no legal impediment in filing a petition under Section

13.

4. However, it is represented by learned counsel for the respondent that the very basis for withdrawal of the appeal is some kind of medical report that is available on the record and has been submitted in compliance to the orders passed by the learned Mediator in this case. However, the said report has not been ordered to be opened as yet.

5. Now, that the appellant has sought to withdraw the present appeal, obviously, the report as submitted cannot be utilized as evidence in any other proceedings.

6. Accordingly, the application is allowed and present appeal is dismissed as withdrawn with liberty to the appellant to file appropriate proceedings under Section 13 of the Hindu Marriage Act.

.

7. It is made clear that the report submitted before the learned Mediator shall not be used as evidence by either of the parties, however, that will not debar them to proceed in accordance with law for having either of the parties medically examined, if so permissible, under the law.

8.

leaving the
parties to to

The appeal is disposed of in the aforesaid terms, bear their own costs. Pending application(s), if any, also stands disposed of.

Copy 'dasti'.

(Tarlok Singh Chauhan) 8 th March, 2019. Judge (krt)